

		48 Cal.App.4th 471, 488.) Plaintiff's opposition also does not address the first amended answer. Defendant De Paola is ORDERED to separately file the cross-complaint with the court within three days and serve all parties in accordance with CCP section 428.60. The cross-complaint must be filed as a separate document to ensure it is properly indexed in the record. Defendant De Paola is also ORDERED to separately file the first amended answer with the court within three days and serve all parties in this case within 30 days. The first amended answer must be filed as a separate document to ensure it is properly indexed in the record. The court vacates the trial date of February 9, 2026. The court continues the case management conference to June 30, 2025 at 9:00 a.m. in Department C28. Moving party shall give notice.
52.	Daichendt v. Aviation Consultants, Inc. 2023-01306989	Defendant Aviation Consultants, Inc.'s Motion to Bifurcate is GRANTED. (Code Civ. Proc. §1048, subd. (b).) Moving Party has shown that a separate trial of Plaintiff's fifth, sixth, and seventh causes of action for declaratory relief would "be conducive to expedition and economy." (See, e.g. ROA No. 467 ("Klein Decl.") at ¶¶ 7-12; ROA No. 471 ("Borgsmiller Decl.") at ¶¶ 1-5.) Namely, the issue of which version of the ACIOC operating agreement governs the dispute and how the provisions of the operative operating agreement should be interpreted with respect to the alleged change of control in Defendant Aviation Consultants, Inc. will obviate the need for an extended trial of many issues in Plaintiff's remaining causes of action. Thus, Moving Defendant's request for a separate trial of the declaratory relief causes of action promotes "expedition and economy" and is therefore warranted under Code Civ. Proc. §1048, subd. (b). The parties shall meet and confer regarding a proposed trial date for the bifurcated causes of action prior to the case management conference. Moving Party shall give notice.
53.	Gregory v. Moore	The motion for judgment on the pleadings ("MJOP") against Plaintiffs' third cause of action for products

	2024-01395517	liability, brought by Defendants Betty Moore, individually and as Trustee of the Betty Hunter Moore Trust, and Betty Hunter Moore Trust, dba Long Beach Investments, erroneously sued and served herein as Long Beach Investments, LLC, a California Limited Liability Company, is GRANTED as to Plaintiffs' breach of implied warranty claim and breach of express warranty claim (all found within Count Three—Breach of Warranty of Plaintiffs' third cause of action), but is otherwise DENIED. Plaintiffs Diana Gregory and Danielle Vasquez shall have 10 days leave to file a first amended complaint. <u>Count One—Strict Liability.</u> Defendants contend that Plaintiffs have not pled sufficient facts to support a cause of action for strict products liability against Defendants as a landlord, citing <i>Peterson v. Superior Court</i> (1995) 10 Cal.4th 1185. But here, Plaintiffs checked the relevant box in paragraph Prod. L-4 on Judicial Council form PLD-PI-001(5) to allege that Defendants "manufactured or assembled the product." This is not a "contradictory" allegation by Plaintiffs as Defendants could in theory be both a landlord and a manufacturer. On an MJOP, the court must accept as true the factual allegations of the complaint "however odd or improbable" they may be. (<i>Thomas v. Regents of University of Cal.</i> (2023) 97 Cal.App.5th 587, 611.) An MJOP "must be denied where there are material factual issues that require evidentiary resolution." (<i>Southern Cal. Edison Co. v. City of Victorville</i> (2013) 217 Cal.App.4th 218, 227.) <u>Count Two—Negligence.</u> Defendants' briefs do not contend that this count of the third cause of action fails. <u>Count Three—Breach of Warranty.</u> Although Judicial Council form PLD-PL-001(5) combines into a single "[c]ount" claims for breach of implied warranty and express warranty, these are separate claims governed by different sections of the Commercial Code (i.e., sections 2313, 2314, and 2315) with different elements that must be alleged and proved. Accordingly, the court treats Plaintiffs' claims for breach of implied and express warranties as separate causes of action for purposes of deciding this motion. (<i>Martinez v. City of Clovis</i> (2023) 90 Cal.App.5th 193, 262 [courts "are not limited by the labels and structure used in the pleading"].)
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